

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 8, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 24, 2013. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and KRAE-AM respectively) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, 112 West 17th Street, Cheyenne, Wyoming). John Sundahl, attorney representing Safeway, spoke in support of the transfer; discussed Safeway's major remodeling plans for the Cole Shopping Center property; Safeway's commitment and contribution to the community; benefits of promoting economic development within the area, and stated that Safeway is seeking approval for the license to provide alcohol package store products as a customer convenience. He advised the area for the retail package store would be approximately 2,000 sq. ft. with a separate outside entrance (no inside entrance to the Safeway grocery store portion), and there would be no drive-up window or bar environment. He referenced and discussed previous information that had been provided to members of the governing body outlining affiliated benefits if the license was approved, and distributed additional copies of the information (on file with City Clerk's office).

Mr. Sundahl further commented on the “parked” status of the current license, noting it is not providing any sales tax revenue benefits due to the status, and reasons why the applicant believes approval of the transfer would not affect other liquor licensees in the area. Jeff Fergot, design manager and architect with Safeway Stores, stated an approved planned unit development (PUD) zoning amendment to allow this type of property use was achieved in 2012 and that Safeway has purchased the property. He provided information on the re-development site plan and anticipated new retail buildings and operations, as well as rehabilitation of some existing buildings, for the property; cooperative work with the City on the new round-about adjacent to a portion of the property; access/egress points within the lot, specifically noting a better designed delivery truck route flow; dimensions and intended uses of the proposed package store premises; Safeway alcohol training program, including the company’s employee policy pertaining to alcohol sales, and security measures. During his comments, Mr. Fergot displayed maps of the proposed development site, which includes the package store. Mr. Sundahl added that employees working in the package store will go through TIPS training as well as Safeway’s alcohol training program. Tom Montoya, Chief of Enforcement, Department of Revenue, Wyoming Liquor Division, expressed that the Liquor Division holds no position with regard to the application, and that he was present to provide information per Mr. Sundahl’s request. Mr. Montoya advised he was not aware of any Wyoming town in which a package store operation affiliated with a grocery store environment had devalued other liquor outlets in the area, and submitted hand-outs consisting of a state-wide census report compilation of all currently approved liquor licenses and type of license and a listing of grocery stores with liquor licenses. Upon inquiry, Mr. Montoya advised Wyoming law doesn’t allow bulk purchases by a licensee; that the Liquor Division does not offer quantity discounts, and that all licensees must buy malt beverages from a local distributor. Jim Weaver, realtor, advised he is affiliated with Safeway’s leasing efforts involving those areas that will be renovated, and reviewed possible types of future businesses that may be interested in locating on the property, stating potential tenants are looking at the package store as a useful convenience and that it will help with revitalization of the area. John Lambousis, Lambousis Revocable Trust (holder of the current liquor license), spoke in favor of the transfer and presented reasons why he believes the proposed liquor store will not pose a competitive threat to other package liquor stores in the City. Upon inquiry, Terry Kunz, Safeway real estate representative, advised although the package store would be a separate space, it will function and be treated as any other store department, such as the bakery and deli departments. Upon inquiry whether a new Safeway store would be built if the transfer of the liquor license was not approved, Mr. Fergot advised that would be a senior management decision and not his to make. Major Dorr spoke in opposition of the transfer, commenting on his disappointment regarding closure of Safeway’s former store site on Pioneer Ave. and expressing concerns regarding setting of a precedent that would allow alcohol to be sold in grocery stores and that, in the future, it may be requested to expand the size of the liquor store. Mr. Lambousis stated diversification of business interests by many companies has evolved over the years and it is no longer unique to have liquor and food sold at the same site or within the same shopping complex, as evidenced in other towns in Wyoming. Alberta LeGrande spoke in opposition to the transfer of ownership, citing concerns with a package store in close vicinity of schools and the V.A. hospital and her belief there were enough places already available to purchase alcohol. Eric Burke commented on whether the license might better benefit another business which would encourage more “night life” in Cheyenne. John Johnson, owner of Old Chicago restaurant, advised he holds a retail liquor

license in Casper and stated when big box stores in Casper acquired a liquor license it did have an effect on other licensees. Comments followed on past policy decisions by members of the governing body to promote more restaurant-type environments involving retail liquor licenses; antiquated state laws involving liquor licensing; sales concerns related to big box store environments; that the application involves a transfer request and not a license the City has available, and “parked” status of the current license. Upon inquiry, Mr. Lambousis provided information on his “parked” license as provided by state law and, upon inquiry, Carol Intlekofer, City Clerk, advised if, in the future, a request is made to enlarge the dispensing room, it will come before the governing body for approval. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

ORDINANCE - Amending various sections within Chapter 5.68, Body Art Establishments and Operations, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to provide for a Body Art Special Event Business License and requirements for participating body artists and guest body artists. Reporting for Finance Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen, Mr. Cook and Dr. Rinne voting “no”. (#3983)

ORDINANCE - Amending Chapter 5.08, Business License Fees, Section 5.08.250, Body Art Establishments and Operations -- Body Artists, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code to implement a license fee for Body Art Special Events. Mr. Brown moved to approve on third and final reading, seconded by Mr. Valdez. Comment followed in reference to a letter governing body members had received (on file with City Clerk’s office) and support for regulating and licensing this type of business activity. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen, Mr. Cook and Dr. Rinne voting “no”. (#3984)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to HI Heavy Industrial for Lot 3, Block 2, Campstool Addition, Second Filing, Cheyenne, Wyoming (located north of and adjacent to Hutchins Drive, west of Campstool Road). Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body. (#3985)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUB Mixed Use Business Emphasis for Lots 1 through 4, Block 1, Cooley Subdivision, Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of Bluegrass Circle and Edgewater Avenue). Mr. Allen moved to approve on third and final reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body. (#3986)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from HI Heavy Industrial to CB Community Business for Lot 3, Block 1, Cheyenne Business Parkway, Cheyenne, Wyoming (located west of and adjacent to Progress Circle, north of Campstool Road. Mr. Allen moved to approve on second reading, seconded by Mr. Shanor. Comment followed regarding a letter that was received by the Development Office from VanDiest Supply Co. in opposition to the proposed zoning change, and request was made that a copy be provided to City Council. Brandon Cammarata, Planning and Development Director, advised staff will provide a copy of the letter and will also provide information of this type to Council members in the future. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as high priority quick fixes from the 2013 annual review. Albert Simpson discussed his personal experience involving buildings and properties he has restored or developed over the years under past as well as the present codes and reviewed his concerns with the current UDC. His comments included PlanCheyenne and UDC development process concerns; costs to developers; submittal and content of two freedom of information (FOI) requests (re: how much money has been spent to develop PlanCheyenne and the UDC), and Mayor's committee formed to review elements of the UDC after Planning Commission's initial review of the final draft in 2010. Upon inquiry, Mr. Simpson provided information relative to a past proposed development involving Maverick's convenience store. Mayor Kaysen provided information on composition of the Critical Path Committee involved in reviewing the UDC prior to its initial approval in 2012, and verified the two freedom of information requests, submitted by Mr. Simpson at the meeting, were both dated July 4, 2013. Frank Cole stated that changes contained in the proposed ordinance doesn't address widths of driveways outside of curbs where two streets intersect at an angle and situations affiliated with narrow lot frontages and lots on curves, and expressed that these need to be addressed in the code. Paul Frauendienst advised he had served as a member of the Critical Path Committee and various committees through compilation of the UDC and spoke in favor of the ordinance, stating the annual review process is working exactly as it should. Doug Selby, architect, expressed concerns with visual and quality architecture and his opinion that input on the UDC by local architects was not being listened to. He stated his biggest issue was with components of Article 6 of the UDC, specifically referencing color and material requirements and design and shape of structures; commented that the UDC needs to have more flexibility and that it goes too far in controlling the appearance of structures and landscaping designs, and advised that some of the provisions, such as alternate designs, result in additional costs to property owners. He stated that staff review and the approval process is cumbersome and he, and some others, would like to see Article 6 removed. Mr. Allen moved to approve on second reading, seconded by Mr. Brown. Mr. Allen advised concerns were raised at the Public Services Committee meeting regarding changes proposed in Section 10 of the ordinance and moved to divide the question to allow for separate discussion and vote on Section 10 of the ordinance, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown, Ms. Broyles and Mr. Valdez voting "no". Discussion included the following topics relative to Section 10 of the ordinance: Concern with regulations on those trying to develop downtown properties; lack of certain provisions pertaining to the downtown Central Business District (CBD) zone; new construction vs. additions to existing buildings; historic nature of the downtown and providing protections or guidelines for development; Section

10 effect pertaining only to new construction with no requirement compelling the rehabilitation or remodeling of existing buildings to meet the proposed new requirements; proposed ordinance being the result of the first UDC annual review process and that the quick fixes do not include other changes being considered; lack of site and building design standards for the CBD zone compared to similar standards for some other zone types; relationship of Section 10 to Article 6, and revitalizing downtown involving a recent study and consultant recommendation. Upon inquiry during discussion, Brandon Cammarata, Planning and Development Director, provided information regarding CBD provisions contained in past codes, current UDC code and proposed Section 10 changes; interpretation of what the word “addition” means (floor area; height of a building), and quick fixes proposed through the annual review process, including recommendation by the Planning Commission, with other changes still being considered. He confirmed the CBD had minimal design standards in the previous codes prior to the UDC. Pursuant to a procedural point of order raised by Mr. Brown, Dan White, City Attorney, stated the main motion was to approve the ordinance as written and the motion was seconded; after the motion to divide carried the motion (as affiliated with the making of the main motion) now before the governing body was to vote on approval of Section 10. Motion to approve Section 10 failed (due to a tie vote). Voting “yes” -- Mr. Allen, Mr. Brown, Ms. Broyles, Dr. Rinne and Mayor Kaysen. Voting “no” -- Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Main motion to approve the ordinance, containing Sections 1 through 9 and 11 through 14, on second reading carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, 2.2.2, Planned Development - Regulating Plan or Development Master Plan, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from LI, Light Industrial, and PUD, Planned Unit Development (County) to LI, Light Industrial, and PUD, Planned Unit Development (City) for Lot 1, Block 2, Swan Ranch Rail Park, First Filing, Lots 1 through 4, and 6, Block 1, Swan Ranch Rail Park, Fourth Filing, all of Swan Ranch Rail Park, Fifth Filing, all of Swan Ranch Rail Park, Seventh Filing, a parcel of land situated in a portion of the north half of Section 27, T.13N., R.67W., 6th P.M., and portions of Sections 14, 15, 22, and 23, T.13N., R.67W., 6th P.M. to be known as Swan Ranch Rail Park, Eighth Filing, Cheyenne, Wyoming (located east of and adjacent to Clear Creek Parkway and north of and adjacent to Tundra Drive) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-2 Medium Density Residential – Developing to CB Community Business for Lot 4, Block 1, Kornegay Homesites, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Kornegay Court, between Yellowstone Road and Sunset Drive) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Vacating a portion of Evans Avenue adjacent to Lot 10, Block 12, Pershing Heights Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 4th and Evans Avenues) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Vacating portions of Van Buren Avenue and Cheyenne Street adjacent to Tracts 145, 146, 147 and 148, Sunnyside Addition, 5th Filing, Cheyenne, Wyoming (located north of E. Pershing Boulevard and east of Polk Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from AR Agricultural Residential to LI Light Industrial for Lots 1-3, Block 1, Polk Addition, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Polk Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to sign a Final Plat for Cooley Subdivision, a replat of Lot 8, Block 8, Meadowbrooke Park, Cheyenne, Wyoming (located at the southwest corner of the intersection of Bluegrass Circle and Edgewater Avenue). Motion (per Consent Agenda) carried. (#5501)

[CA] RESOLUTION - Supporting the City of Cheyenne's Application for Transportation Alternatives Program (TAP) funding for implementation of the Wayfinding Plan. Motion (per Consent Agenda) carried. (#5502)

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with C & S Halvorson, Lot 4, Energy Park One, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5503)

[CA] RESOLUTION - Dissolving the Laramie County Early Childhood Education and Development Joint Powers Board -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to enter into a Settlement Agreement and Re-Development Agreement with 19th and Converse, LLC, a Colorado Limited Liability Company, to settle all remaining issues relating to the acquisition of right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19th Street intersections, and approving, as a condition of settlement, the trade of certain real property owned by the City to 19th and Converse, LLC, described as Lots 30 and 31, Block One, Eastridge Addition, having an assessed value of \$81,590.00, in exchange for certain real property owned by 19th and Converse, LLC, consisting of approximately 9,504 square feet of land, being a portion of Lots 1 and 2, Ruth Addition, having an appraised value between \$190,080.00 and \$237,600.00, both properties being located at the intersection of Converse Avenue and Pershing Boulevard, Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Creating the Employee Investment Study Implementation Team to consider alternative means of implementing the Employee Investment Study conducted by the Mercer Group, LLC -- referred to Finance Committee (sponsors -- Mr. Allen and Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Polk Addition, a replat of Tracts 145-148, Sunnyside Addition, 5th Filing, a replat of a portion of vacated Van Buren Avenue, a replat of a portion of vacated Cheyenne Street, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. Pershing Boulevard and Polk Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Acknowledging receipt of the Strategic Downtown Action Plan 'Historic Placemaking: Strategies for Invigorating Downtown Cheyenne' as a working document and tool for Downtown Cheyenne -- referred to Public Services Committee (sponsor -- Dr. Rinne).

[CA] Contract between City of Cheyenne, Engineering Department, and IMS Infrastructure Management Services, Tempe, Arizona, for pavement condition survey, assessment and inventory services (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$99,810.00). (#6025)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No. 1 for School Resource Officers, for the 2013 - 2014 school year. Motion (per Consent Agenda) carried (revenue to the City - \$435,185.00). (#6026)

[CA] Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal shelter services. Motion (per Consent Agenda) carried (amount not to exceed \$319,192.00). (#6027)

[CA] Agreement between the City of Cheyenne and Cheyenne Animal Shelter/Services for animal control services. Motion (per Consent Agenda) carried (amount not to exceed \$185,000.00). (#6028)

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for professional legal counsel assistance. Motion (per Consent Agenda) carried. (#6029)

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services. Motion (per Consent Agenda) carried (amount not to exceed \$50,000.00). (#6030)

User Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Stampede Junior "A" Hockey, LLC, to host the 2013-2014 season at the City-owned Ice and Events Center. Kari Kivisto, Director of Leisure Services, Parks and Recreation Department, commented in support of the renewal agreement. Mr. Brown moved to approve, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. Dan White, City Attorney, advised the substitute provides for language correction in Section 4.C. relating to the sale of alcoholic beverages, which was listed in error, and that the change will restrict sales to only malt beverages, which was contained in last year's agreement. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#6031)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for the 2013- 2014 Concert Season -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Cheyenne Civic Center for Youth Education Concerts -- referred to Finance Committee.

[CA] Juvenile Housing Agreement between Laramie County, Wyoming, and the City of Cheyenne -- referred to Finance Committee.

[CA] Memorandum of Understanding between the Town of Hulett, Wyoming and the City of Cheyenne, Wyoming for Law Enforcement Extraterritorial Assistance -- referred to Finance Committee.

Memorandum of Understanding between the City of Casper, Wyoming and the City of Cheyenne, Wyoming for Law Enforcement Extraterritorial Assistance -- referred to Finance Committee. Mr. Brown advised that due to the governing body approval deadline of July 8, 2013 for the 2013 Cheyenne Frontier Days celebration, the item was reviewed under other items for the agenda at the July 1st Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve, seconded by Mr. Luna. Chief Brian Kozak, Police Department, explained the MOU will allow for combined resources involving assistance from Casper police officers during Cheyenne Frontier Days and provides the ability for Cheyenne police officers, in return, to assist the City of Casper if requested. He advised Casper officers will utilize their own cars and will be assisting with DUI enforcement not only at Frontier Park but on the streets as well; that there would be no cost to the City; that officers from the City of

Laramie will also be assisting during the event, and noted grant funding assisting with expenses being utilized by the other municipalities. Upon inquiry, he advised both Casper and Laramie officers will have the same authority as Cheyenne police officers have, and that wording relative to the MOU's term duration follows state law. Motion carried. Voting "yes" -- all members of the governing body. (#6032)

Following a brief recess, Mayor Kaysen reconvened the meeting at 8:15 p.m.

Memorandum of Understanding between Cheyenne Frontier Days, Inc., the City of Cheyenne and Laramie County School District Number One, for buses owned by the Laramie County School District Number One to be used and operated for public transportation services during the 2013 Cheyenne Frontier Days Celebration -- referred to Finance Committee. Mr. Brown advised that due to the governing body approval deadline of July 8, 2013 for the 2013 Cheyenne Frontier Days celebration, the item was reviewed under other items for the agenda at the July 1st Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve, seconded by Mr. Luna. Dan White, City Attorney, explained that following prior approval of two agreements, involving this item and the following agenda item, by the governing body several weeks ago relating to the Park and Ride program, the school district requested changes which are reflected in the MOU. Motion carried. Voting "yes" -- all members of the governing body. (#6006)

Contract between the City of Cheyenne and Cheyenne Frontier Days, Inc., for buses owned by the Laramie County School District Number One to be used and operated for public transportation services during the 2013 Cheyenne Frontier Days celebration -- referred to Finance Committee. Mr. Brown advised that due to the governing body approval deadline of July 8, 2013 for the 2013 Cheyenne Frontier Days celebration, the item was reviewed under other items for the agenda at the July 1st Finance Committee meeting and provisions of Title 2 of City Code had been met. Mr. Brown moved to approve, seconded by Ms. Broyles. Upon inquiry, Dan White, City Attorney, confirmed his comments on the previous agenda item also related to this item. Motion carried. Voting "yes" -- all members of the governing body. (#6007)

[CA] Contract Modification No. 1 to Contract No. 5921 between the City of Cheyenne and Reiman Corporation to add additional work items to the East Pershing Boulevard Reconstruction Project Phase IV (2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration Funding) -- referred to Finance Committee.

[CA] Consideration of Bid #R-29-13 for furnishing 10 Police vehicles for the City of Cheyenne Police Department from Spradley Barr Motors, Cheyenne, Wyoming (State Loan & Investment Board funds, 2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$255,197.00).

[CA] Consideration of Bid #R-31-13 for furnishing two new mowers and one new utility cart for the Parks & Recreation Department, Grounds & Facilities Division (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Greenline/Stotz Equipment, Casper, Wyoming in an amount not to exceed \$50,774.88).

[CA] Consideration of Bid #M-16-13 for Fiscal Year 2013 Concrete for Street and Alley Overlay Part “B” project between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, Cheyenne, Wyoming (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-19-13 for 2013 City of Cheyenne Pavement Markings project between the City of Cheyenne, Engineering Department, and Kolbe Striping, Castle Rock, Colorado (2011- 2014 1% Sales Tax) -- referred to Finance Committee.

Under other business:

Pete Laybourn stated that accompanying documentation for agenda items included on the City’s website is helpful and applauded Council members for their efforts in the challenges they face as elected officials. He discussed the importance of ascertaining the life expectancy of streets relative to repairs and reconstruction; commented on infrastructure funding, resources and planning for the future, and expressed concerns with the quality of concrete and asphalt products. He requested Council look at history as to why some streets and curbs and gutters are failing as correlated to changes in product materials and planning on how to deal with future street infrastructure to provide for longer life expectancy.

Appreciation was extended to a City Engineer staff member for assistance involving a sewer/drainage issue; question was posed regarding whether Mr. Herrick’s sanitation concerns had been addressed; comment was made regarding contractors on construction projects not cleaning up debris, and it was noted that the Police Department’s 4th annual Neighborhood Night-Out event was scheduled for Tuesday evening, July 9th. During comments, Mayor Kaysen advised the sanitation matter is still under on-going discussion, and advised staff will follow-up with the construction project debris concern.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:32 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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